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Summary of stakeholders' submissions on Paraguay*

Report of the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the periodicity of the universal periodic review and the outcome of the previous review.¹ It is a summary of 22 stakeholders' submissions² for the universal periodic review, presented in a summarized manner owing to word-limit constraints. A separate section is provided for the contribution by the national human rights institution that is accredited in full compliance with the Paris Principles.

II. Information provided by the national human rights institution accredited in full compliance with the Paris Principles

2. In 2025, the Ombudsman's Office of Paraguay regained category A status from the Subcommittee on Accreditation of the Global Alliance of National Human Rights Institutions.³

3. The Ombudsman's Office recommended ensuring that State agencies acted in accordance with the law and in the public interest,⁴ in accordance with Act No. 7445/2025 on Public Service and the Civil Service, under which the State was authorized to sue public servants who engaged in misconduct.⁵

4. The Ombudsman's Office recommended strengthening the mechanism for compensating victims of human rights violations during the dictatorship.⁶

5. The Ombudsman's Office expressed concern about Act No. 7363/64 on the Oversight, Transparency and Accountability of Non-profit Organizations as it imposed requirements and procedures that restricted the exercise of the right of association.⁷ It called for the Act to be brought into line with the principles of necessity and proportionality and with international human rights standards.⁸

* The present document is being issued without formal editing.



6. The Ombudsman's Office stated that a bill on the protection of journalists, media workers and human rights defenders⁹ was still pending and recommended prioritizing it, ensuring a participatory legislative process and allocating financial resources to it.¹⁰

7. The Ombudsman's Office recommended reforming the law on conscientious objection, ensuring that persons who opted for alternative civilian service would receive the same benefits as those who completed mandatory military service.¹¹

8. The Ombudsman's Office reported that rates of total and extreme monetary poverty had fallen, although they remained very high in rural areas.¹² It considered it essential to implement targeted public policies to reduce disparities between urban and rural areas, paying particular attention to Indigenous populations,¹³ and to step up investment in social inclusion and employment programmes, with a focus on young persons.¹⁴

9. The Ombudsman's Office pointed to the low public investment in health¹⁵ and the lack of access to treatments, supplies and medications, in connection with which lawsuits were continuously being brought.¹⁶ It recommended establishing effective public policies and adequate budgets¹⁷ and bringing investment in public health into line with the recommendations of the World Health Organization (6% of gross domestic product).¹⁸

10. The Ombudsman's Office recommended effectively implementing the National Plan for Human Rights Education, ensuring that it was allocated the necessary budget.¹⁹

11. The Ombudsman's Office noted that regulatory progress had been made in respect of the environment and that there were challenges relating to agricultural expansion, illicit crops, deforestation in protected areas²⁰ and artisanal gold mining that posed risks to human health and the environment.²¹ It recommended adopting the National Forest Restoration Plan,²² strengthening the capacity of the Ministry of the Environment and Sustainable Development and the municipal governments,²³ and managing socioenvironmental conflicts through dialogue and respect for human and environmental rights, with the participation of local governments and the Ombudsman's Office.²⁴

12. The Ombudsman's Office referred to the persistent violations of Indigenous Peoples'²⁵ rights to land, drinking water and sanitation²⁶ and the delays and obstacles hindering the regularization, titling and restitution of lands.²⁷ It recommended designing and implementing a national plan for the regularization of Indigenous territories with an allocated budget and sustainable inter-agency mechanisms.²⁸ It also called for the strengthening of drinking water infrastructure and the adoption of sustainable solutions that would guarantee permanent and safe access to water in rural and Indigenous areas.²⁹

III. Information provided by other stakeholders

A. Scope of international obligations³⁰ and cooperation with human rights mechanisms

13. Amnesty International and Joint Submission 3 (JS3) noted the failure to ratify the Regional Agreement on Access to Information, Public Participation and Justice in Environmental Matters in Latin America and the Caribbean (Escazú Agreement), in connection with which the Government of Paraguay had stated that it would move forward with a process of analysis, dialogue and exchange among stakeholders.³¹

14. Amnesty International drew attention to the non-ratification of the Optional Protocol to the International Covenant on Economic, Social, and Cultural Rights and the Ljubljana-The Hague Convention on International Cooperation in the Investigation and Prosecution of the Crime of Genocide, Crimes against Humanity, War Crimes and Other International Crimes.³² JS3 called for the ratification of the Inter-American Convention on Protecting the Human Rights of Older Persons,³³ which has been pending since the previous universal periodic review,³⁴ during which a commitment was made to ratify it.

15. JS3 urged Paraguay to ratify the Inter-American Convention against Racism, Racial Discrimination and Related Forms of Intolerance and the Inter-American Convention against All Forms of Discrimination and Intolerance.³⁵

16. Amnesty International and JS3 welcomed the visits of the Special Rapporteur on hazardous substances and wastes and the Special Rapporteur on minority issues in 2022.³⁶ JS3 referred to the failure to provide the reparations ordered by the Human Rights Committee in a number of cases. JS3 urged Paraguay to strengthen its cooperation with all United Nations human rights mechanisms and to grant the reparations ordered by the treaty bodies.³⁷

B. National human rights framework

17. JS5 reported some progress in the implementation of the National Human Rights Plan (PNDH) 2013–2017. Nevertheless, authorities had prepared the III Action Plan 2021–2023 without broad citizen participation and so far, there was no evidence of a comprehensive new national plan.³⁸

18. Joint Submission 12 (JS12) recommended re-incorporating gender mainstreaming in the fourth National Equality Plan 2018–2024 and in all national policies.³⁹

Institutional infrastructure and policy measures

19. JS3 referred to the lack of political independence of the Ombudsman's Office, which resulted from the lack of a regulated, merit-based selection process, the Office's lack of transparency and its vulnerability to political collusion.⁴⁰ Amnesty International recommended establishing a transparent and participatory procedure for electing the Ombudsman that would guarantee pluralism and independence and be based on a track record of defending human rights, in line with the Paris Principles.⁴¹ JS3 requested that Paraguay comply with the recommendations of the Subcommittee on Accreditation of the Global Alliance of National Human Rights Institutions with a view to establishing a transparent, participatory selection process based on the verifiable merits of competence and a track record of defending human rights and pluralism.⁴² Joint Submission 11 (JS11) recommended strengthening the Ombudsman's Office and improving its capacity to respond to, and follow up on, cases.⁴³

C. Promotion and protection of human rights

1. Implementation of international human rights obligations, taking into account applicable international humanitarian law

Equality and non-discrimination

20. A number of communications expressed concern about the lack of comprehensive laws against all forms of discrimination,⁴⁴ which, according to the Red Paraguaya de Artistas LGBTQ+, leaves LGBTQ+ persons in a situation of structural vulnerability to violence, exclusion and the denial of their fundamental rights, preventing access to protective mechanisms and redress for victims of violence and exclusion.⁴⁵ JS12 recommended adopting legislation prohibiting all forms of discrimination, including on the grounds of gender, sexual orientation, gender identity and expression, race, ethnicity, disability and age.⁴⁶

21. Amnesty International expressed regret about impunity for hate speech and the promotion of discrimination against lesbian, gay, bisexual, transgender and intersex persons.⁴⁷ Joint Submission 2 (JS2) recommended strengthening the implementation of inclusive public policies and awareness-raising campaigns at all levels of Government, ensuring equitable access to rights for Indigenous Peoples, persons with disabilities, people of African descent, LGBTQ+ persons and other excluded groups.⁴⁸

Right to life, liberty and security of person, and freedom from torture

22. Joint Submission 6 (JS6) expressed alarm about the disappearance of persons, which heightened the risk of trafficking in persons. It stated that institutional responses were inadequate, as there were no effective search and location protocols, investigations were not conducted with due diligence and no risk analysis was undertaken, leaving families to conduct searches alone.⁴⁹

Administration of justice, including impunity, and the rule of law

23. JS3 expressed concern about systematic impunity for crimes against humanity committed during the civil-military dictatorship of 1954–1989, with convictions being secured against only eight oppressors. It mentioned the defunding of, and lack of government support for, the programme to search for and identify disappeared persons, the delays and red tape surrounding reparation measures and the statute of limitations applicable to civil compensation proceedings, which excluded victims from the protections to which they were entitled. JS3 recommended investigating and prosecuting crimes against humanity; guaranteeing prompt, fair and effective access to comprehensive reparation for all victims and their families; and funding a programme to search for and locate persons who were disappeared during the dictatorship, ensuring the identification and return of disappeared persons' remains.⁵⁰

24. JS3 noted that Paraguay had not taken measures to guarantee the independence and impartiality of the judiciary.⁵¹ According to JS6, the judicial system was marked by procedural delays, a lack of human rights perspectives and discriminatory biases that perpetuated impunity.⁵² JS3 recommended guaranteeing the independence and impartiality of the judiciary by improving the transparency of judicial proceedings and accountability, restricting political influence over the appointment and dismissal of judges, and ensuring a balance of powers in selection and prosecution bodies.⁵³

25. The National Mechanism for the Prevention of Torture of Paraguay expressed concern about the persistent abuse of pretrial detention; overcrowding; maximum security regimes that constitute torture; corruption and control of prisons by criminal groups; the lack of gender-sensitive policies; the failure to register the children of incarcerated women; the failure to change the budget assigned to the National Mechanism for the Prevention of Torture; and the failure to professionalize prison staff.⁵⁴ It also highlighted prolonged periods of detention in inhumane conditions and cases of torture for which no charges were brought.⁵⁵ It recommended reducing the use of pretrial detention, eliminating prolonged solitary confinement, and adopting a gender- and child-sensitive prison policy.⁵⁶

26. JS11 noted that penalties were becoming harsher in the juvenile justice system and recommended vetoing bills that would lower the age of criminal responsibility and/or increase penalties for adolescents.⁵⁷ The National Mechanism for the Prevention of Torture of Paraguay recommended strengthening the Restorative Justice Programme.⁵⁸

Fundamental freedoms and the right to participate in public and political life

27. JS5 expressed concern about attacks and a growing hostile environment for civil society, particularly those working on environmental and land rights and anti-corruption and transparency.⁵⁹ A number of communications mentioned that, against a backdrop of shrinking civic space, Act No. 7363 (the Garrote Act), adopted in 2024, abusively restricted freedom of association with vague provisions and unclear penalties.⁶⁰ JS1 stressed that penalties for non-compliance were severe and disproportionate, and threatened non-profit organisations;⁶¹ compromising the privacy and security of their members.⁶² According to JS5, the civic space was obstructed.⁶³ A number of communications recommended repealing Act No. 7363 and guaranteeing freedom of association in accordance with international human rights law.⁶⁴

28. JS1 stated that despite supporting most previous recommendations on freedom of expression, implementation remained weak, with women journalists impacted the most.⁶⁵ JS3 recorded 122 cases of violence directed at journalists by the authorities and criminal organizations and two journalists killed since the previous universal periodic review, bringing the number of journalists killed between 1991 and 2025 to 21.⁶⁶ JS3 recommended

investigating and punishing those responsible for murders, assaults and threats targeted at journalists, and forming a working group to investigate the murders of journalists in the exercise of their profession, as instructed by the Inter-American Court of Human Rights in the case of *Santiago Leguizamón v. Paraguay*.⁶⁷

29. JS3 expressed concern about the use of the criminal justice system to harass human rights defenders, noting that Paraguay was failing to comply with its commitments to stop criminalizing them and to investigate attacks.⁶⁸ JS5 detailed harassment, intimidation and attacks against campesino leaders, Indigenous and environmental Human Rights defenders, and journalists, highlighting a pattern of state complicity and structural impunity.⁶⁹ JS3 and JS1 recommended conducting independent, effective and impartial investigations into attacks against human rights defenders; adopting measures to prevent and bring an end to their criminalization;⁷⁰ refraining from using surveillance technologies against them; and establishing a protection mechanism that incorporates an intersectional gender perspective.⁷¹ Amnesty International regretted the lack of progress made towards adopting the bill to protect journalists and human rights defenders, despite the commitments made,⁷² and recommended that it be adopted.⁷³

30. JS5 affirmed that the government supported one recommendation on freedom of peaceful assembly but had not implemented it.⁷⁴ JS1 noted that during peaceful “Gen Z” demonstrations in September 2025 authorities used open-source intelligence systems and cyber-patrol tools to monitor participants without judicial authorisation, and demonstrations were violently suppressed.⁷⁵ JS5 expressed concern that Law No. 1.066/1997 (Marchódromo Law) proscribed time and place restrictions on demonstrations and the obligation to notify the police, granting authorities excessive discretion to restrict them.⁷⁶ JS5 recommended repealing or amending Law No. 1.066/97, eliminating arbitrary restrictions; dropping charges against peaceful protesters; ensuring judicial recourse and effective remedy; ensuring protest observers monitor police conduct without fear; and updating existing human rights training for police and security forces according to the UN Basic Principles on the Use of Force and Firearms.⁷⁷

31. JS12 reported that women accounted for only 23.2% of members of Congress and recommended the adoption of the bill on democratic parity, in accordance with the Constitution.⁷⁸

Right to privacy

32. Tecnología, Educación, Desarrollo, Investigación y Comunicación (TEDIC) referred to the lack of transparency of surveillance policies and practices, and that Paraguay had obtained tools to conduct surveillance without an appropriate legal framework.⁷⁹ The regulation of drones remained fragmented and weak.⁸⁰ JS1 expressed concern at the lack of independent oversight mechanisms in the acquisition and use of mass surveillance technologies, raising serious privacy-related concerns.⁸¹

33. TEDIC recommended adopting an adequate regulatory framework in line with international principles and standards to guarantee the transparency and accountability in the acquisition of surveillance technology and regulate the use of surveillance technology by the State or other state authorised actors. This framework should protect people against potential abusers, by ensuring any surveillance measures respect the principles of necessity and proportionality; by guaranteeing independent judicial authorisation, appropriate reporting procedures and meaningful information regarding the scope and extent of the use of private surveillance technology; and by establishing independent oversight bodies to audit, investigate and prosecute abuse in the use of surveillance technologies.⁸²

Prohibition of all forms of slavery, including trafficking in persons

34. European Centre for Law and Justice (ECLJ) reported that, according to the 2023 Global Slavery Index, an estimated 46,000 people lived in conditions of modern slavery in Paraguay, exploited for labor and sexual services⁸³ via false promises.⁸⁴ Joint Submission 11 (JS11) stated that Paraguay was among the countries with the highest number of victims of trafficking in persons, with alarming numbers of disappeared children and adolescents and a lack of systematic records, protocols and rapid response mechanisms.⁸⁵ ECLJ stated that,

although between 2019 and 2023 authorities had opened cases, the number of human trafficking cases that opened every year had decreased since 2019⁸⁶ due to corruption, impunity, lack of resources and inadequate victim support.⁸⁷ Two communications noted that trafficking in persons and sexual and economic exploitation mainly affected women, girls, boys and adolescents belonging to vulnerable groups.⁸⁸

35. Several submissions recommended that Paraguay weed out corruption, provide resources, open shelters, and offer help to victims,⁸⁹ as well as strengthen inter-institutional coordination, comprehensive protection, training, and prevention measures.⁹⁰

Right to work and to just and favourable conditions of work

36. Joint Submission 9 (JS9) reported that various forms of abuse and exploitation, including violence and sexual harassment, had been directed at Indigenous domestic workers by their employers,⁹¹ and recommended that labour inspections and reporting mechanisms be strengthened.⁹²

Right to an adequate standard of living

37. According to JS3, Paraguay was marked by a high concentration of land ownership, low levels of public investment in the rural sector and the increasing criminalization of campesino activism. Campesinos had limited access to land, despite the regulations in force. A national commission for exploring mechanisms for recovering public agricultural land illegally awarded during the 1954–1989 dictatorship has not been established. JS3 recommended establishing mechanisms for recovering public land to ensure the right to adequate food for the rural population; implementing policies for land redistribution; ensuring the participation of campesinos in decisions relating to agricultural policy; and promoting food sovereignty.⁹³

Right to health

38. JS3 emphasized that free public healthcare was not guaranteed and that public spending was insufficient to increase access to, and the quality of, services.⁹⁴ JS11 regretted the low level of funding allocated to mental health.⁹⁵ JS9 stated that Indigenous women and girls faced additional barriers to healthcare.⁹⁶

39. Joint Submission 13 (JS13) referred to the criminalization of abortion in Paraguay, which is authorized only when a woman's life or health is at risk and is not governed by a clear protocol.⁹⁷ In 2024, the Ministry of Health registered 4,691 abortions and, as of June 2025, 19 women had died. Under current legislation, women were forced to seek clandestine abortions.⁹⁸ Two communications recommended guaranteeing the right to terminate a pregnancy when the person's life and mental or physical health are at risk; decriminalizing abortion, at least in cases of rape or abuse;⁹⁹ adopting a law on sexual and reproductive health that guarantees universal access to safe abortion;¹⁰⁰ and offering humane, non-stigmatizing and confidential services.¹⁰¹

40. Center for Family and Human Rights (C-Fam) recommended to ensure adequate and affordable maternal health care, investing in infrastructure and ensuring pregnant women in remote areas have access to adequate antenatal care.¹⁰²

41. JS13 noted that no significant progress had been made towards preventing early pregnancies and protecting the sexual and reproductive rights of women and girls.¹⁰³ In 2024, the Ministry of Health recorded 350 births to girls aged between 10 and 14 years who were not given the option of terminating the pregnancy,¹⁰⁴ putting their lives, life plans and physical and mental health at risk.¹⁰⁵ JS6 stated that the lack of comprehensive sexuality education undermined efforts to prevent sexual violence and forced pregnancy.¹⁰⁶ JS2 noted that access to sexual and reproductive health services was limited and responses to sexual violence were ineffective.¹⁰⁷ JS13 recommended budgeting for the National Sexual and Reproductive Health Plan 2024–2030 and the National Comprehensive Adolescent Health Plan;¹⁰⁸ adopting measures to prevent sexual abuse, such as implementing comprehensive sexuality education¹⁰⁹ and a comprehensive national plan for preventing and responding to sexual violence;¹¹⁰ ensuring the provision of comprehensive support with measures to prevent

revictimization;¹¹¹ establishing a single registry of cases of sexual violence;¹¹² and strengthening the training of judges and justice officials.¹¹³

Right to education

42. JS2 noted that school attendance rates had improved but dropout rates remained high among rural and low-income students as a result of poverty, the lack of infrastructure, poor quality education, violence and lack of vocational guidance.¹¹⁴ It also noted that there was a marked disparity between State and private schools.¹¹⁵ Two communications referred to the persistent educational gap and structural restrictions affecting access to education for Indigenous Peoples,¹¹⁶ disproportionately affecting Indigenous girls.¹¹⁷

43. JS2 considered that the implementation of the National Plan for Human Rights Education had been partial and uneven. Despite the legislative developments made, significant gaps remained that would require urgent measures to be taken in relation to infrastructure, teacher training, inclusive policies and educational reform.¹¹⁸ It recommended increasing investment in infrastructure and educational resources in rural areas and Indigenous communities in order to ensure appropriate conditions for access and retention, with a focus on inclusive and bilingual secondary and technical education; and implementing programmes to reduce school dropout rates and discrimination.¹¹⁹ Joint Submission 10 (JS10) mentioned the low quality of early childhood education.¹²⁰

Development, the environment, and business and human rights

44. JS3 stated that Paraguay had taken insufficient action to tackle the challenges of climate change, particularly with regard to halting deforestation caused by the expansion of monoculture farming and the use of forest fires to expand agricultural land. JS3 recommended institutionally strengthening the agencies responsible for preventing deforestation and expanding their coverage to the entire territory.¹²¹

2. Rights of specific persons or groups

Women

45. According to Amnesty International, 78.5% of women experienced gender-based violence and, in 2024, an average of 103 people per day submitted reports of domestic violence.¹²² Despite the commitments made by Paraguay,¹²³ legislative initiatives such as a bill to ban gender mainstreaming and another to eliminate the Ministry for Women involved a serious risk of regression.¹²⁴ A number of communications recommended including in the national budget the resources necessary to implement Act No. 5777 on Comprehensive Protection for Women against All Forms of Violence;¹²⁵ strengthening the fourth National Equality Plan;¹²⁶ and strengthening the independence of the Ministry for Women¹²⁷ and comprehensive care services for victims, particularly victims of sexual violence.¹²⁸

46. A number of communications referred to cases of femicide,¹²⁹ with the majority of victims being murdered by their current or former partners.¹³⁰ JS2 questioned the effectiveness of early warning systems.¹³¹ Two communications recommended including resources for the implementation of Act No. 6806¹³² and adopting a national protocol for the prevention of femicide to ensure swift inter-agency responses.¹³³

47. Madres Autónomas Paraguay (Madresautónomaspy) stated that vicarious violence was a form of gender-based violence that involved sons and daughters being weaponized in order to cause pain to their mothers.¹³⁴ It pointed out that, according to the Public Prosecution Service, there were 4,251 cases involving failure to comply with legal maintenance obligations in 2025, which constituted economic and institutional violence¹³⁵ in a context of impunity, with a conviction rate of only 1%.¹³⁶ Madresautónomaspy recommended that vicarious violence be recognized and that the misuse of the child court system be halted.¹³⁷

48. JS4 highlighted violence against women in digital spaces.¹³⁸ Act No. 5777/16 recognized cyberviolence.¹³⁹ However, according to JS1, this legislation was limited in scope, leaving other forms of technology-facilitated gender-based harassment and abuse uncovered and creating legal and protection gaps.¹⁴⁰ A number of communications recommended developing regulatory frameworks on cybersecurity; recognizing online

gender-based violence as a violation of human rights; amending article 6 of Act No. 5777/16 to include the various forms of online violence against women;¹⁴¹ preventing misuse of the Act to unjustifiably restrict journalistic work;¹⁴² and training justice officials to respond appropriately to digital violence.¹⁴³

49. Unidas en la Esperanza explained that stigma and discrimination against sex workers facilitated violations of rights,¹⁴⁴ including violations that harmed their physical integrity¹⁴⁵ and resulted in arbitrary detention¹⁴⁶ and the denial of access to justice.¹⁴⁷ Unidas en la Esperanza recommended training law enforcement agents and justice officials and treating violence against women sex workers as gender-based violence.¹⁴⁸

Children

50. JS2 expressed concern about discrimination, structural exclusion and the unequal progress made in improving the health situation of various groups of children, particularly in Indigenous and rural communities, where access to education, healthcare, drinking water and legal documentation is limited.¹⁴⁹

51. JS11 noted that unpaid domestic child labour (*criadazgo*), which involved placing poor children and adolescents in other people's homes on the promise that they will receive food, housing and education, continued to be practised.¹⁵⁰ According to JS9, *criadazgo* particularly affected Indigenous girls, who performed domestic work without compensation and were exposed to abuse, receiving insufficient support and care from the State.¹⁵¹ JS6 argued that this practice exposed children and adolescents to multiple violations, exploitation, and sexual violence¹⁵² and that no policies have been adopted to tackle it.¹⁵³ It also pointed out that the National Congress had rejected a bill aimed at protecting children against *criadazgo* on the grounds that it was part of Paraguayan culture.¹⁵⁴ A number of communications recommended prohibiting *criadazgo* in law, ensuring school retention and adopting a national strategy based on a preventive, comprehensive and systemic approach.¹⁵⁵

52. JS11 expressed concern about the persistence of child unions and marriages, including those endorsed by the State, given that the law continued to allow marriage from the age of 16 years with the authorization of a court.¹⁵⁶ JS9 highlighted the vulnerability of Indigenous adolescents to early marriage and pregnancy.¹⁵⁷ JS12 recommended eliminating exceptions to the minimum age for marriage.¹⁵⁸

Persons with disabilities

53. JS2 drew attention to the fact that Indigenous children and children with disabilities faced significant barriers and discrimination in gaining access to education and greater obstacles to remaining in the education system.¹⁵⁹ JS2 recommended strengthening the implementation of inclusive public policies and awareness-raising campaigns, ensuring equitable access.¹⁶⁰ JS12 recommended adopting legislation against all forms of discrimination, including on grounds of disability.¹⁶¹

54. JS12 referred to the clear difference between men with disabilities in employment and women with disabilities. It recommended implementing measures to reduce the wage and employment gap for women with disabilities and to promote their full inclusion in public and private employment.¹⁶²

Indigenous Peoples

55. JS9 reported that Paraguay had made no progress in implementing the recommendations on Indigenous Peoples emanating from the third cycle. It expressed concern about poverty resulting from land dispossession and the requirement to have an identity card to gain access to social programmes intended to reduce poverty.¹⁶³ It also referred to the precarious nature of Indigenous housing, which is subject to significant gaps in access to electricity, drinking water and sanitation services.¹⁶⁴

56. Amnesty International reported that the National Plan for Indigenous Peoples 2020–2030 lacked adequate funding and that the National Institute of Indigenous Affairs¹⁶⁵ had been weakened. According to JS9, the Indigenous Peoples had reported that there was a lack of political will and limited State financial capacity for the effective implementation of

the Plan.¹⁶⁶ Two communications recommended strengthening the Plan with sufficient funding¹⁶⁷ and enhancing the operational and legal capacity of the National Institute of Indigenous Affairs.¹⁶⁸

57. JS3 reported that little progress had been made towards the restitution of Indigenous territories.¹⁶⁹ JS9 mentioned conceptual limitations in land restitution policies, under which areas of land were conceived as physical spaces rather than as territories essential for the exercise of self-determination by the Indigenous Peoples.¹⁷⁰ Two communications denounced the legal uncertainty faced by Indigenous communities in respect of their territories, the lack of land titles, the slow and fragmented administrative procedures, forced evictions, the lack of comprehensive public policies on access to drinking water, health and education in Indigenous territories¹⁷¹ and encroachments on these territories.¹⁷²

58. Joint Submission 8 (JS8) stated that the protocol on consultation and free, prior and informed consent had structural shortcomings that hindered its effective implementation: the protocol lacked binding legal mechanisms or sanctions for non-compliance and failed to ensure substantive participation by Indigenous Peoples based on their own timelines, languages and organizational structures.¹⁷³ JS9 expressed concern about projects carried out without free, prior and informed consent, causing the destruction of ecosystems, displacement and the fragmentation of the social fabric.¹⁷⁴ JS8 recommended ensuring that consent procedures were binding and in compliance with the right of Indigenous Peoples to self-determination.¹⁷⁵ JS3 recommended strengthening land restitution mechanisms, guaranteeing Indigenous participation in the formulation of public policy and ensuring equitable access to essential resources in their territory.¹⁷⁶

59. JS8 reported that sacred sites had been violated.¹⁷⁷

60. JS9 expressed concern about the selective and unequal implementation of the Zavala-Riera Act, which increased penalties for encroaching on private property, affecting poor and rural communities and Indigenous Peoples. It recommended amending the Zavala-Riera Act and the national unified registry to prevent them from being used in a discriminatory manner and from having a regressive impact.¹⁷⁸

Lesbian, gay, bisexual, transgender and intersex persons

61. REPAR+ stressed that the situation of the LGBTQ+ population in Paraguay remained marked by the absence of legislation, by institutional and social discrimination, and the rise of hate speech.¹⁷⁹ Ultra-conservative political and religious sectors targeted the LGBTQ+ community as a threat to the family and national values resulting in increased violence against them, normalising harassment in public and private life and stigmatisation.¹⁸⁰ REPAR+ stated that the lack of legal recognition of civil unions between same sex couples generated inability to access certain rights and benefits as well as indirect discrimination in housing policies.¹⁸¹

62. REPAR+ noted the absence of an administrative procedure for the legal recognition of self-perceived gender and the change of name under civil legislation being obstructed when requested by a trans person.¹⁸² It recommended to establish an agile, accessible and free administrative procedure for that purpose.¹⁸³

Notes

¹ A/HRC/48/9, A/HRC/48/9/Add.1, and A/HRC/48/2.

² The stakeholders listed below have contributed information for this summary; the full texts of all original submissions are available at: www.ohchr.org (one asterisk denotes a national human rights institution with A status).

Civil society

Individual submissions:

AI	Amnesty International, London (United Kingdom of Great Britain and Northern Ireland);
CFam	Center for Family and Human Rights, New York, NY 10017 (United States of America);
ECLJ	European Centre for Law and Justice, The, Strasbourg (France);

Madresautónomaspy MNP-Py	Madres Autónomas Paraguay, Asunción (Paraguay); MECANISMO NACIONAL DE PREVENCIÓN CONTRA LA TORTURA – PARAGUAY, Asunción (Paraguay);
REPAR+ TEDIC	Red Paraguaya de Artistas LGBTQ+, SAN LORENZO (Paraguay); Tecnología, Educación, Desarrollo, Investigación y Comunicación, Asunción (Paraguay).

Joint submissions:

JS1	Joint submission 1 submitted by: ARTICLE 19, London, EC1R 3GA (United Kingdom of Great Britain and Northern Ireland); ARTICLE 19 and TEDIC Association (TEDIC);
JS2	Joint submission 2 submitted by: Istituto Internazionale Maria Ausiliatrice, Veyrier (Switzerland); IIMA – Istituto Internazionale Maria Ausiliatrice; VIDES International – International Volunteerism Organization for Women, Education, Development; Instituto de las Hijas de María Auxiliadora Inspectoría de San Rafael Arcángel – PAR Asunción – Paraguay;
JS3	Joint submission 3 submitted by: Coordinadora de Derechos Humanos del Paraguay, Asunción (Paraguay); AIREANA, grupo por los derechos de las lesbianas, Ary Ojasojavo Estudios Ancestrales y Populares, Asociación Callescuela, Asociación Panambi, Base Investigaciones Sociales (Base-IS), Centro de Documentación y Estudios (CDE), Centro de Estudios Rurales Interdisciplinarios (CERI), Comité de América Latina y el Caribe para la Defensa de los Derechos de la Mujer (Cladem-Py), Coordinación de Mujeres del Paraguay (CMP), Decidamos – Campaña por la expresión Ciudadana, Fundación Vencer, Gestión Local, Grupo Sunu de Acción Intercultural, Heñói, Iniciativa Amocotodie, Kuña Róga, Mamá Cultiva Paraguay, Red de ONG's que trabajan VIH/SIDA en Paraguay, Servicio Jurídico Integral para el Desarrollo Agrario (SEIJA), Servicio Paz y Justicia – Paraguay (Serpaj – Py), Sindicato de Periodistas del Paraguay (SPP), Sociedad de Comunicadores del Paraguay (SCP), Sobrevivencia – Amigos de la Tierra, Tape'a para el desarrollo social sostenible, Tierraviva a los pueblos indígenas del Chaco, Tierra Libre, TEDIC – Tecnología y Comunidad, UNES – Unidas en la Esperanza. Organizaciones adherentes: Amnistía Internacional Paraguay, Comité de Iglesias para Ayudas de Emergencia (CIPAE), Coordinadora por los Derechos de la Infancia y la Adolescencia (CDIA), Coordinación Nacional de Pastorales Indígenas (Conapi – CEP), Centro de Estudios Paraguayos Antonio Guasch (Cepag), Centro Paraguayo de Teatro (Cepate), Fundación Celestina Pérez de Almada (FCPA), FUNDAR, Instituto de Ciencias Sociales de Paraguay (ICSO), Semillas para la Democracia, Oguasu;
JS4	Joint submission 4 submitted by: Association for Progressive Communications, Johannesburg (South Africa); Asociación para el Progreso de las Comunicaciones (APC), Asociación TEDIC, and Derechos Digitales;
JS5	Joint submission 5 submitted by: CIVICUS: World Alliance for Citizen Participation, Johannesburg (South Africa); CIVICUS: World Alliance for Citizen Participation; Institución de Comunicación y Desarrollo (ICD) – Rendir Cuentas Initiative; Semillas para la Democracia; and Alma Cívica;
JS6	Joint submission 6 submitted by: CONGREGATION OF OUR LADY OF CHARITY OF THE GOOD SHEPHERD, Genève (Switzerland); Fundación Buen Pastor Paraguay; Coordinadora por los Derechos de la Infancia y la Adolescencia (CDIA); Consultorio Jurídico Feminista; Base Educativa y Comunitaria de Apoyo (BECA); Asociación Tatarendy; Congregación de Nuestra Señora de la Caridad del Buen Pastor (OLCGS); and Good Shepherd International Foundation (GSIF);

- JS7 **Joint submission 7 submitted by:** Synergía-Initiatives for Human Rights, Washington DC (United States of America); Consultorio Jurídico Feminista; La Red de Mujeres Periodistas y Comunicadoras del Paraguay (RMPCPy); and Synergía, iniciativas para los derechos humanos;
- JS8 **Joint submission 8 submitted by:** Cultural Survival, Cambridge, MA 02140 (United States of America); Cultural Survival, Asociación Pañ Reta Joaju and Asociación de Comunidades Indígenas Pañ Jopytyra;
- JS9 **Joint submission 9 submitted by:** Land is Life, New York, NY 10003-1502 (United States of America); Land is Life and Organización Payipie Ichadie Totobiegosode;
- JS10 **Joint submission 10 submitted by:** International Catholic Child Bureau, Geneva (Switzerland); Bureau International Catholique de l'Enfance (BICE) and Callescuola;
- JS11 **Joint submission 11 submitted by:** Coordinadora por los Derechos de la Infancia y la Adolescencia, Asunción (Paraguay); Coordinadora por los Derechos de la Infancia y la Adolescencia (CDIA); Agencia Adventista de Desarrollo y Recursos Asistenciales (ADRA Paraguay); Base Educativa y Comunitaria de Apoyo (BECA); Asociación Callescuola (Callescuola); Centro de Educación, Capacitación y Tecnología Campesina (CECTEC); Movimiento Pro Derecho del Niño Deficiente (DENIDE); Asociación Enfoque Niñez Lazos para Crecer (ENFOQUE Niñez); Fundación ALDA Paraguay; Fundación Buen Pastor; Fundación Casa Cuna Dr. Carlos Santiviago (Casa Cuna); Fundación La Salle Paraguay; Fundación Teletón Paraguay; Fundación Vencer; Global Infancia; Good Neighbors Paraguay; Grupo Luna Nueva; Mama Cultiva Paraguay; Paraguay Educa; Plan International Paraguay; Red Viva del Paraguay; Servicio Paz y Justicia Paraguay (SERPAJ-Py); Tape'a – Taller Pedagógico Alternativo; Alma Cívica; CAMSAT – Centro de Ayuda Mutua Salud para Todos; Enseña por Paraguay; Fundación Maristas de la Solidaridad Internacional; and Presencia Joven;
- JS12 **Joint submission 12 submitted by:** Kuña Róga, Encarnación (Paraguay); Coordinadora de Derechos Humanos del Paraguay (CODEHUPY), Centro de Documentación y Estudios (CDE), Comité de América Latina y el Caribe para la Defensa de los Derechos de las Mujeres (CLADEM Paraguay), Consultorio Jurídico Feminista (CJF), Coordinación de Mujeres del Paraguay (CMP), and Kuña Róga;
- JS13 **Joint submission 13 submitted by:** Akahata-Equipo de Trabajo en Sexualidades y Géneros, Buenos Aires (Argentina); Coordinadora por los Derechos de la Infancia y la Adolescencia (CDIA), Base Educativa y Comunitaria de Apoyo (Beca) de Paraguay; and Sexual Rights Initiative (SRI);
- JS14 **Joint submission 14 submitted by:** Unidas en la Esperanza, Asunción (Paraguay); Unidas en la Esperanza (UNES) and Red de Trabajadoras Sexuales de Latinoamérica y del Caribe – RedTraSex.

National human rights institution:

DP-PY Defensoría del Pueblo del Paraguay, Asunción (Paraguay).

³ DP-PY, para. 3. For relevant recommendations see [A/HRC/48/9](#), paras. 118.16–118.20 and 118.24–118.28.

⁴ DP-PY, para. 42.

⁵ DP-PY, para. 26.

⁶ DP-PY, para. 41.

⁷ DP-PY, para. 5.

⁸ DP-PY, para. 27.

⁹ DP-PY, para. 6. For relevant recommendations see [A/HRC/48/9](#), paras. 118.80 to 118.97.

¹⁰ DP-PY, para. 28.

¹¹ DP-PY, para. 30. See also DP-PY, para. 7.

- ¹² DP-PY, paras. 8–9. For relevant recommendations see [A/HRC/48/9](#), paras. 118.113 and 118.115 to 118.118.
- ¹³ DP-PY, para. 31.
- ¹⁴ DP-PY, para. 32.
- ¹⁵ DP-PY, para. 13. For relevant recommendations see [A/HRC/48/9](#), para. 118.121.
- ¹⁶ DP-PY, para. 14.
- ¹⁷ DP-PY, para. 14.
- ¹⁸ DP-PY, para. 35.
- ¹⁹ DP-PY, para. 33. See also DP-PY, paras. 12 and 34. For relevant recommendations see [A/HRC/48/9](#), paras. 118.146 and 118.147.
- ²⁰ DP-PY, para. 15. For relevant recommendations see [A/HRC/48/9](#), para. 118.49.
- ²¹ DP-PY, para. 19.
- ²² DP-PY, para. 37. See also DP-PY, para. 16.
- ²³ DP-PY, para. 38. See also DP-PY, para. 17.
- ²⁴ DP-PY, para. 21.
- ²⁵ DP-PY, para. 22. For relevant recommendations see [A/HRC/48/9](#), paras. 118.198 and 118.206.
- ²⁶ DP-PY, para. 23.
- ²⁷ DP-PY, para. 24.
- ²⁸ DP-PY, para. 39.
- ²⁹ DP-PY, para. 40.
- ³⁰ The following abbreviations are used in UPR documents:
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|------------|---|
| ICERD | International Convention on the Elimination of All Forms of Racial Discrimination |
| ICESCR | International Covenant on Economic, Social and Cultural Rights |
| OP-ICESCR | Optional Protocol to ICESCR |
| ICCPR | International Covenant on Civil and Political Rights |
| ICCPR-OP 1 | Optional Protocol to ICCPR |
| ICCPR-OP 2 | Second Optional Protocol to ICCPR, aiming at the abolition of the death penalty |
| CEDAW | Convention on the Elimination of All Forms of Discrimination against Women |
| OP-CEDAW | Optional Protocol to CEDAW |
| TSF | Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment |
| OP-CAT | Optional Protocol to CAT |
| RCC | Convention on the Rights of the Child |
| OP-CRC-AC | Optional Protocol to CRC on the involvement of children in armed conflict |
| OP-CRC-SC | Optional Protocol to CRC on the sale of children, child prostitution and child pornography |
| OP-CRC-IC | Optional Protocol to CRC on a communications procedure |
| ICRMW | International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families |
| CRPD | Convention on the Rights of Persons with Disabilities |
| OP-CRPD | Optional Protocol to CRPD |
| ICPPED | International Convention for the Protection of All Persons from Enforced Disappearance |
- ³¹ AI, para. 5 and JS3, para. 1. See also JS1, para. 2.
- ³² AI, para. 6. See also JS3, para. 1.
- ³³ JS3, para. 1.
- ³⁴ AI, para. 7.
- ³⁵ JS3, para. 1. See also JS2, para. 42 and 44.
- ³⁶ AI, para. 9; JS3, para. 3.
- ³⁷ JS3, para. 3. See also JS5, para. 6.5.
- ³⁸ JS5, para. 2.12.
- ³⁹ JS12, p. 3 and 5. See also JS2, para. 32.
- ⁴⁰ JS3, para. 2.
- ⁴¹ AI, para. 23.
- ⁴² JS3, para. 2.
- ⁴³ JS11, para. 73.
- ⁴⁴ JS11, para. 39; JS12, p. 3; and REPAR+, para. 4. See also AI, para. 10.

- 45 REPAR+, para. 4.
- 46 JS 12, page 4. See also REPAR+, para. 20 and JS3, para. 4.
- 47 AI, para. 10.
- 48 JS2, para. 44.
- 49 JS6, para. 24.
- 50 JS3, para. 8. See also DP-PY, para. 8.
- 51 JS3, para. 11.
- 52 JS6, para. 85.
- 53 JS3, para. 11.
- 54 MNP, paras. 29, 34.
- 55 MNP, para. 39.
- 56 MNP, para. 47. See also MNP para. 48.
- 57 JS11, para. 76 and 65.
- 58 MNP, para. 48.
- 59 JS5, para. 1.7.
- 60 AI, para. 11; JS3, para. 5; and JS11, para. 67. See also JS1, para. 9; JS5, paras. 1.8, 2.6, 2.7, 2.8; JS6, para. 9; JS4, paras. 6–8; and DP-PY, para. 5.
- 61 JS1, para. 12.
- 62 AI, para. 11; JS14, para. 2; JS4, para. 8; JS3, para. 5.
- 63 JS5, para. 1.10.
- 64 AI, para. 31; JS3, para. 5; JS1, para. 32; JS5, para. 6.1; and JS11, para. 78. See also DP-PY, para. 27.
- 65 JS1, para. 3.
- 66 JS3, para. 6.
- 67 JS3, para. 6.
- 68 JS3, para. 7.
- 69 JS5, para. 3.5. See also JS8, pp. 6–7.
- 70 JS3, para. 7.
- 71 JS1, para. 32.
- 72 AI, para. 3. See also JS3, para. 7; JS5, para. 6.2 and JS7, para. 35.
- 73 AI, para. 22. See also JS5, para. 6.2.
- 74 JS5, para. 5.1.
- 75 JS1, para. 15. See also, JS5, para. 5.8; TEDIC, para. 16.
- 76 JS5, para. 5.3 and 5.5.
- 77 JS5, para. 6.4.
- 78 JS12, para. IX.
- 79 TEDIC, para. 12. See also JS1, para. 17.
- 80 TEDIC, para. 14.
- 81 JS1, para. 17.
- 82 TEDIC, paras. 33–34.
- 83 ECLJ, para. 8. See also ECLJ, paras. 9–13.
- 84 ECLJ, para. 14.
- 85 JS11, para. 34. See also JS6, para. 13.
- 86 ECLJ, para. 15.
- 87 ECLJ, para. 16. See also JS2, para. 46 and JS6, paras. 12, 15 and 46.
- 88 JS4, para. 20 and JS2, para. 47.
- 89 ECLJ, para. 19.
- 90 JS2, para. 49 and JS12, p. 6.
- 91 JS9, para. 7.2.4.
- 92 JS9, para. 8.6.3.
- 93 JS3, para. 16.
- 94 JS3, para. 12. See also AI, para. 12.
- 95 JS11, para. 63.
- 96 JS9, para. 7.3.1.
- 97 JS13, para. 55. See also JS11, para. 26.
- 98 JS13, para. 57.
- 99 JS13, para. 61 and JS12, p. 9.
- 100 JS12, p. 9.
- 101 JS13, para. 61.
- 102 C-Fam, para. 21.
- 103 JS13, paras. 13–14.
- 104 JS13, para. 58.
- 105 JS13, para. 60.
- 106 JS6, para. 21.

- ¹⁰⁷ JS2, para. 29.
¹⁰⁸ JS13, para. 23.
¹⁰⁹ JS13, para. 27.
¹¹⁰ JS13, para. 39.
¹¹¹ JS13, para. 40.
¹¹² JS13, para. 43.
¹¹³ JS13, para. 45.
¹¹⁴ JS2, para. 14. See also JS10, para. 13.
¹¹⁵ JS2, para. 16.
¹¹⁶ JS11, para. 18; JS9, paras. 3.4.1–3.4.3; and JS8, p. 10.
¹¹⁷ JS9, para. 7.4.1.
¹¹⁸ JS2, para. 17.
¹¹⁹ JS2, para. 19. See also JS10, para. 14 and JS11, para. 28.
¹²⁰ JS10, paras. 13–17.
¹²¹ JS3, para. 17.
¹²² AI, para. 20. See also JS3, para. 14 and JS7, para. 13.
¹²³ AI, para. 20. See also JS3, para. 14 and JS7, para. 13.
¹²⁴ AI, para. 21. See also JS3, para. 14; JS11, para. 33; and JS4, para. 31.
¹²⁵ JS3, para. 14. See also JS11, para. 62 and JS12, p. 6.
¹²⁶ JS2, para. 36.
¹²⁷ AI, para. 44. See also JS3, para. 14; JS7, paras. 12 and 15; and *Madresautónomaspy*, p. 7.
¹²⁸ JS2, para. 36. See also JS3, para. 14; JS4, para. 67; JS7, paras. 22 and 24 and JS12, p. 6.
¹²⁹ AI, para. 20 and JS3, para. 14. See also JS2, para. 33.
¹³⁰ JS2, para. 33.
¹³¹ JS2, para. 34.
¹³² JS3, para. 14.
¹³³ JS2, para. 36.
¹³⁴ *Madresautónomaspy*, p. 1.
¹³⁵ *Madresautónomaspy*, p. 2.
¹³⁶ JS3, para. 14.
¹³⁷ *Madresautónomaspy*, p. 7.
¹³⁸ JS4, para. 13.
¹³⁹ JS4, para. 14. See also JS1, para. 20.
¹⁴⁰ JS1, para. 20. See also JS4, para. 15.
¹⁴¹ JS4, p. 16.
¹⁴² JS5, paras. 4.4 and 6.3.
¹⁴³ JS4, para. 16.
¹⁴⁴ UNES, para. 12.
¹⁴⁵ UNES, paras. 13–15.
¹⁴⁶ UNES, paras. 28–31.
¹⁴⁷ UNES, paras. 32–34.
¹⁴⁸ UNES, pp. 7–8.
¹⁴⁹ JS2, para. 28 and 25.
¹⁵⁰ JS11, para. 44. See also JS12, p. 8.
¹⁵¹ JS9, para. 7.4.2.
¹⁵² JS6, para. 26.
¹⁵³ JS6, para. 26.
¹⁵⁴ JS6, para. 27. See also JS6, paras. 28–29, and JS11, para. 44.
¹⁵⁵ JS12, p. 9; JS9, para. 8.6.5; JS11, para. 51; and JS6, para. 39.
¹⁵⁶ JS11, para. 35. See also JS12, para. XVI.
¹⁵⁷ JS9, para. 7.4.3.
¹⁵⁸ JS12, p. 12.
¹⁵⁹ JS2, para. 16, 30 and 43. See also JS9, para. 3.3.1.
¹⁶⁰ JS2, para. 44. See also JS12, p. 9.
¹⁶¹ JS12, p. 4.
¹⁶² JS12, pp. 8 and 9.
¹⁶³ JS9, paras. 3.1.1–3.1.3.
¹⁶⁴ JS9, parar. 3.2.1–3.2.2.
¹⁶⁵ AI, para. 16.
¹⁶⁶ JS9, para. 2.3.
¹⁶⁷ JS3, para. 15.
¹⁶⁸ JS8, p. 11.
¹⁶⁹ JS3, para. 15.

- ¹⁷⁰ JS9, para. 6.2.1.
¹⁷¹ JS3, para. 15. See also JS8, p. 9.
¹⁷² JS8, pp. 3–6.
¹⁷³ JS8, pp. 9–10.
¹⁷⁴ JS9, para. 6.3.2. (JS8, p. 11).
¹⁷⁵ JS8, p. 11.
¹⁷⁶ JS3, para. 15.
¹⁷⁷ JS8, p. 8.
¹⁷⁸ JS9, para. 8.5.4.
¹⁷⁹ REPAR+, para. 27.
¹⁸⁰ REPAR+, para. 6.
¹⁸¹ REPAR+, para. 5.
¹⁸² REPAR+, para. 13.
¹⁸³ REPAR+, para. 22. See also JS3, para. 4.
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